

(3) The foregoing provisions of this section shall not apply to any action where the cause of action has accrued before the passing of this Act or to any criminal proceedings for an offence committed before the passing of this Act; but for the purposes of this subsection no cause of action in respect of any continuing act, neglect or default shall be deemed to have accrued until the act, neglect or default has ceased.

Interpretation, short title and citation. 4.—(1) In this Act the expression “the air corporations” means the British Overseas Airways Corporation and the British European Airways Corporation.

(2) This Act may be cited as the Air Corporations Act, 1953.

(3) The Air Corporations Act, 1949, and this Act may be cited together as the Air Corporations Acts, 1949 and 1953.

CHAPTER 8

An Act to alter the date for the publication, in the year nineteen hundred and fifty-five and subsequent years, of registers of parliamentary and local government electors, and consequentially on that alteration to alter the elections for which those registers are to be used, and the qualifying date for those elections, and make further provision in place of section four of the Electoral Registers Act, 1949. [18th December 1953.]

BE it enacted by the Queen’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Alteration of date for publication of registers, of qualifying date for registration etc.

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1.—(1) The Electoral Registers Act, 1949, shall have effect with the substitution for subsections (2) to (4) of section one of the following subsections:—

“(2) Registers of parliamentary and local government electors or, in Northern Ireland, registers of parliamentary electors, shall be published not later than the fifteenth day of February, and registers published in any year shall be used for elections at which the date fixed for the poll falls within the period of twelve months beginning with the sixteenth day of February in that year.

(3) As regards Great Britain, the tenth day of October in any year shall be the qualifying date for a parliamentary or local government election at which the date fixed for the poll falls within the period of twelve months beginning with the sixteenth day of February in the next following year.

(4) As regards Northern Ireland, the fifteenth day of September in any year shall be the qualifying date for such a parliamentary election as aforesaid."

(2) In the said Act, section two and the First Schedule (which make provision, consequential on the abolition of the autumn register, with respect to persons coming of age during the currency of the annual register) shall be amended by substituting references to the fifteenth day of February for the references in that section to the fifteenth day of March or to the first day of April, and by substituting references to the sixteenth day of February for the references in paragraphs 3 and 4 of that Schedule to the sixteenth day of March or to the second day of April.

(3) Section four of the said Act (together with the Representation of the People (Adaptation of Enactments) Order, 1951, and the Representation of the People (Adaptation of Enactments) (Scotland) Order, 1951, made under that section) shall cease to have effect; and the Schedule to this Act (which reproduces the effect of those orders with adaptations consequential on the last foregoing subsection) shall have effect instead of them, but may be modified by regulations under subsection (5) of section one of the said Act as if it were contained in that Act.

(4) The foregoing provisions of this section shall have effect with respect to registers to be published in the year nineteen hundred and fifty-five and subsequent years, and elections at which the date fixed for the poll falls after the fifteenth day of February, nineteen hundred and fifty-five.

2.—(1) This Act may be cited as the Electoral Registers Act, 1953, and shall be construed as one with, and included amongst the Acts which may be cited as, the Representation of the People Acts.

(2) This Act may also be cited with the Electoral Registers Act, 1949, as the Electoral Registers Acts, 1949 and 1953.

SCHEDULE

Section 1.

ADAPTATIONS OF ENACTMENTS

1. In the enactments listed at the end of this Schedule references to a person registered in any register of parliamentary or of local government electors (whether such person is described as an "elector", "registered parliamentary elector", "local government elector", "county elector", "district council elector" or otherwise) shall not during the period beginning with the sixteenth day of February in any year and ending with the first day of October in that year, include a person who is so registered by virtue of section two of the Electoral Registers Act, 1949, except where the part of the register in which

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his name appears is a part continued in force by subsection (6) of section one of the said Act (which continues the old register if there is delay in publishing the new).

2. In the proviso to subsection (4) of section forty-six of the Representation of the People Act, 1949 (which relates to the arrangements to be made for enabling persons with a service qualification to make use of it), for the words "the age of twenty-one" there shall be substituted the words "the age of twenty years and three months".

3. In relation to elections at which the date fixed for the poll falls after the fifteenth day of February in any year and before the second day of October in that year, any reference to an entry in the register of parliamentary or local government electors or in the electors lists in subsection (2) or (3) of section sixty-four of the Representation of the People Act, 1949 (which relates to the limitation of election expenses), or in subsection (6) of section eighty-eight of the said Act (which relates to the use of motor vehicles at parliamentary elections), shall not include a reference to the entry of a person who is entered in the register of parliamentary or local government electors or in the electors lists by virtue of section two of the Electoral Registers Act, 1949, except where the part of the register in which his name appears is a part continued in force by subsection (6) of section one of the last-named Act.

4. After note 4 in the form of nomination paper for a parliamentary election contained in the Appendix to the Parliamentary Elections Rules in the Second Schedule to the Representation of the People Act, 1949, there shall be added the following note:—

"At an election at which the date fixed for the poll falls after the 15th February and before the 2nd October, a person marked with a *[the mark used to distinguish persons entitled to vote by virtue of section two of the Electoral Registers Act, 1949]* in the register to be used at that election may not subscribe a nomination paper";

and a note in the same terms shall be added after the note required to be printed on the back of a nomination paper for a local government election by each of the forms of such nomination paper contained in the Appendix to the Scottish Local Elections Rules in the Third Schedule to the said Act.

List of enactments referred to in paragraph 1 of Schedule

Small Holdings Act, 1892	Education (Scotland) Act, 1946
Allotments (Scotland) Act, 1892	National Health Service (Scotland) Act, 1947
Orkney and Zetland Small Piers and Harbours Act, 1896	Local Government (Scotland) Act, 1947
Temperance (Scotland) Act, 1913	Town and Country Planning (Scotland) Act, 1947
Sunday Entertainments Act, 1932	Representation of the People Act, 1949
Local Government Act, 1933	Election Commissioners Act, 1949
Public Health Act, 1936	
Housing Act, 1936	
London Government Act, 1939	
Water (Scotland) Act, 1946	